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Case Number: 26NNCV01132 Hearing Date: July 9, 2026 Dept: T

Xiu

Mei Huang, by and through her successor in interest Mengshan Huang vs. Arcadia

Care Center, LLC, et al.

Motion

to Compel Defendant Arcadia Care Center, LLC's Further Responses to Requests for Production, Set One

Moving Party: Plaintiff

Xiu Mei Huang, by and through her successor in interest Mengshan Huang

Responding Party: Defendant

Arcadia Care Center, LLC

Tentative Ruling: Grant

BACKGROUND

This is a

negligence and elder abuse action.

On March 10, 2026,

Plaintiff Xiu Mei Huang, by and through her successor in

interest Mengshan Huang ("Plaintiff") served a first set of requests for

production on Defendant Arcadia Care Center, LLC ("Defendant").

On

April 23, 2026, Defendant served its responses to these production requests.

On June 6, 2026, following meet and confer efforts by the parties, Plaintiff filed a motion to compel Defendant's further responses to Requests for Production numbers 78, 79, 88, 89, 107, 121, 128, 183, and 184.

Defendant opposes, and Plaintiff replies.

On July 2, 2026, Plaintiff filed a notice of partial withdrawal as to Requests for Production numbers 78, 79, 128, 183, and 184. As a result, Requests for Production numbers 88, 89, and 121 remain at issue.

MOVING PARTY POSITION

Plaintiff argues that Requests for Production numbers 88 and 89 seek relevant information regarding the number of staff who were working at the facility during Plaintiff's residency at the facility and whether Defendant violated regulations due to a pattern of understaffing, as alleged in the complaint. Plaintiff argues that Request for Production number 121 seeks relevant information regarding fitness of Defendant's employees who provided nursing services to Plaintiff. Because Defendant fails to produce the documents requested, Plaintiff seeks to compel their production based on the good cause shown.

Plaintiff also seeks in monetary sanctions in the amount of \$3,000.00.

OPPOSITION

Defendant initially argues that Plaintiff's motion is moot and should be denied because Defendant served supplemental responses on June 24, 2026, that cured any deficiencies, as all responsive documents within its possession, custody, and control have been produced.

Defendant also contends that monetary sanctions are not warranted based on its attested conduct in attempting to work with Plaintiff's counsel to cure the noted deficiencies.

REPLY

Plaintiff responds that the opposition is misleading, as the supplemental responses do not cure the previously noted deficiencies given the absence of responsive documents to Requests for Production numbers 88, 89, and 121. Plaintiff later filed a notice that these remain as the only requests in dispute.

ANALYSIS

I.

Legal Standard

A. Requests for Production

Code of

Civil Procedure section 2031.310(a) provides that “on receipt of a response to a request for production of documents, the demanding party may move for an order compelling further responses if: 1. A statement of compliance with the demand is incomplete. 2. A representation of inability to comply is inadequate, incomplete, or evasive. 3. An objection in the response is without merit or too general.” 1. A statement of compliance with the demand is incomplete. 2. A representation of inability to comply is inadequate, incomplete, or evasive. 3. An objection in the response is without merit or too general.

(1) A statement of compliance with the demand is incomplete.

(2) A representation of inability to comply is inadequate, incomplete, or evasive.

(3) An objection in the response is without merit or too general.

“The

motion shall set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc. § 2031.310, subd. (b)(1).)

“The motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc. § 2031.310, subd. (b)(2).)

“Unless

notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to

the demand.”² (Code Civ. Proc. § 2031.310, subd. (c).)~~~~~

“[T]he

court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2031.310, subd. (h).)

II. Discussion

Initially, based on the supporting declaration of Plaintiff’s counsel, Stephen M. Garcia, the Court finds that counsel’s meet and confer efforts were reasonable and in good faith, thus satisfying this statutory requirement. (Code Civ. Proc. § 2016.040, subd. (a).)

A. Requests for Production

At the outset, the Court notes that, per the declaration of Defendant’s counsel Adrienne B. Gallant, supplemental and amended responses to Requests for Production numbers 88, 89, and 121 were served on June 24, 2026. (Gallant Decl. ¶¶ 16, Exh. G; id. ¶¶ 17, Exh. H.) Though it is evident from these exhibits that supplemental responses were served on Plaintiff during the pendency of the instant motion, the service of these responses does not moot this motion as Defendant asserts in its opposition. (Ibid.)

For example, in situations where a party provides an untimely interrogatory response that may completely or substantially resolve the issues raised by a motion to compel initial responses, the trial court retains the authority to hear the motion. (See *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408 (“*Sinaiko*”).) In *Sinaiko*, the appellate court analyzed the effect of untimely responses served during the pendency of a motion to compel initial responses under Code of Civil Procedure section 2030.290(b) as follows:

Whether a particular response does resolve

satisfactorily the issues raised by a motion is a matter best determined by the trial court in the exercise of its discretion, based on the circumstances of the case. In many cases involving untimely responses, the propounding party will take the motion off calendar or narrow its scope to the issue of sanctions. If the propounding party proceeds with the motion, however, the trial court has the discretion to rule on the motion. The trial court might compel responses without objection if it finds no legally valid responses have been provided to one or more interrogatories; it might deny the motion to compel responses as essentially unnecessary, in whole or in part, and just impose sanctions; it might treat the motion as one under section 2030.300 and either determine that further answers are required, or order the propounding party to “meet and confer” (§ 2030.300, subd. (b)) and file a separate statement (Cal. Rules of Court, rule 3.1020(a)(2), (c)); or it might take the motion off calendar, thereby requiring the propounding party to file a motion under section 2030.300.

(Sinaiko,
supra, 148 Cal.App.4th at p. 409.)

Although the appellate court in Sinaiko analyzed this issue under the context of a motion to compel initial responses to interrogatories, the underlying reasoning remains applicable in similar circumstances involving service of supplemental responses to other forms of discovery requests during the pendency of motions to compel further responses to said requests. (See, e.g., *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 256 [rejecting the appellant’s assertion “that a party opposing a motion to compel further responses may unilaterally divest the court of authority to rule on the motion by serving a further response in the interim”].) In *County of San Benito*, the appellate court rejected this asserted interpretation of the Discovery Act because it “would permit a party faced with a motion to compel to delay its adjudication indefinitely by successive supplemental but inadequate responses, each prompting a further motion to compel, each of which in turn would be defeated by piecemeal” supplemental responses. (Id. at p. 256.)

Accordingly, under this framework, the Court shall exercise its discretion to consider the supplemental responses to Requests for Production numbers 88, 89, and 121 that were served on June 24, 2026, in determining whether to compel further responses to said production requests.

“Unless otherwise limited

by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc. § 2017.010.) “Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.” (Ibid.)

“In the more specific context of a request to produce documents, a party who seeks to compel production must show “good cause” for the request [citation]—but where, as here, there is no privilege issue or claim of attorney work product, that burden is met simply by a fact-specific showing of relevance.” (Glenfed Development Corp. v. Superior Court (1997) 53 Cal.App.4th 1113, 1117.)

After filing the notice of partial withdrawal, Plaintiff seeks to compel further responses to Requests for Production numbers 88, 89, and 121.

Request

for Production number 88 requests the following documents: “Please provide all FACILITY Payroll Audit Logs as to DIRECT CAREGIVERS encompassing the residency of the PLAINTIFF in the FACILITY. (The names of all residents other than the PLAINTIFF should be redacted from the production.)”

Request

for Production number 89 requests the following documents: “Please provide all FACILITY Time Card Correction forms as to DIRECT CAREGIVERS encompassing the residency of the PLAINTIFF in the FACILITY. (The names of all residents other than the PLAINTIFF should be redacted from the production.)”

Request

for Production number 121 requests the following documents: “Please produce each DOCUMENT upon which YOU relied during the residency of the PLAINTIFF in the FACILITY to ensure that FACILITY personnel who provided NURSING SERVICES to the PLAINTIFF during the residency of the PLAINTIFF in the FACILITY, as well as Ycheal Levine and Alexiuse Pearl Garcia San Mateo, were fit to perform their job duties in the FACILITY.”

Given the allegation in Plaintiff's complaint regarding the mistreatment and abuse she allegedly experienced at Defendant's facility, including allegations of understaffing by Defendant and of the unfitness of Defendant's employees, the Court finds that Plaintiff has shown good cause for the requested document production due to their subject matter. (Compl. ¶¶ 8-10, 60; See Garcia Decl. ISO Separate Statement ¶¶ 10-17; Garcia Decl. ISO Reply ¶ 6.)

Furthermore, based on the exhibited copies of Defendant's amended and supplemental responses to Requests for Production numbers 88, 89, and 121, that were served on June 24, 2026, the exhibited excerpts from the document production accompanying the responses, and Plaintiff's counsel's uncontroverted attestation regarding the contents of this production, the Court finds that Defendant's responses are incomplete and evasive.

In particular, as Requests for Production numbers 88 and 89 specifically seek "Payroll Audit Logs" and "Time Card Correction" documents for Defendant's facility, and as the exhibited excerpts from the documents found in "Exhibit 19" and referenced in Defendant's amended responses to these requests appear to include "Time Detail Report" documents that are comprised of neither category of documents requested, Defendant failed to adequately respond to the requests as written. (See Gallant Decl. ¶ 17, Exh. H; Garcia Decl. ISO Reply ¶ 5, Exh. 5.) If no responsive "Payroll Audit Logs" and "Time Card Correction" documents are in its possession, custody, or control, then Defendant must state its inability to comply in the manner required by Code of Civil Procedure section 2031.230. However, given the substance of the responses and accompanying production, the amended responses to these requests are inadequate under Code of Civil Procedure section 2031.310.

In addition, given Defendant's response to Special Interrogatory number 15, which sought identification of all persons who provided nursing services to Plaintiff during her admission at the facility, Defendant's failure to produce the requested documents for Lidya Honcharenko, Karen Lopez Ascencio, Xiaoying Ruan, Rica Cuenca, Ycheal Levine, and Alexiuse Pearl Garcia San Mateo renders its supplemental response deficient. (Garcia Decl. ISO Reply, Exh. 7.) Likewise, if no responsive documents for these persons are in Defendant's possession, custody, or control, Defendant must provide the requisite statement under Section 2031.310. However, due to the unexplained absence of responsive documents for these individuals in Defendant's supplemental

production, the supplemental responses are inadequate under section 2031.310.

Therefore, as Plaintiff has shown good cause for their production, the motion to compel further responses to Requests for Production numbers 88, 89, and 121 is granted.

B. Sanctions

Plaintiff seeks monetary sanctions in the amount of \$3,000.00 against Defendant and its counsel of record, jointly and severally.

Although the Court's imposition of monetary sanctions is required by Section 2031.310(h), absent a showing of substantial justification or circumstances that would make this imposition unjust, the Court retains "broad discretion to use rational methods to reduce a requested amount in order to reach a reasonable award." (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1300.) Accordingly, given the declared rates, hours, and costs underlying the requested \$3,000.00 amount, and the limited scope of the issues addressed in Defendant's opposition, the Court finds that a reasonable reduction of \$1,000.00 is warranted.

Therefore, the request for sanctions is granted in the reduced total amount of \$2,000.00.

RULING

Plaintiff Xiu Mei Huang, by and through her successor in interest Mengshan Huang's Motion to Compel Defendant Arcadia Care Center, LLC's Further Responses to Plaintiff's Requests for Production, Set One, is GRANTED as to Requests for Production numbers 88, 89, and 121. Said further responses are due within 20 days of this order.

Plaintiff's request for monetary sanctions is GRANTED IN PART in the reduced total amount of \$2,000.00 against Defendant and its counsel of record, jointly and severally. Said monetary sanctions shall be paid to counsel for Plaintiff within 30 days of this order.